

Settlement Agreement.

3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$7,710.34, plus costs of \$916.50, for a total judgment of \$8,626.84.
4. Subject to Paragraph 1 above, Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

4. 9:00 AM CASE NUMBER: L24-09985

CASE NAME: WELLS FARGO BANK, N.A. VS. JENNIFER RODA

*HEARING ON MOTION FOR DISCOVERY MTN TO DEEM REQ FOR ADMISSIONS ADMITTED FILED BY PLN ON 9/25/25

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion to Deem Requests for Admissions Admitted on September 25, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 16, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Jennifer Guptill Roda ("Defendant") with a Requests for Admission (Set One). See Declaration of Pearse F. Early filed September 25, 2025 ("Supporting Declaration"), ¶1 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on June 3, 2025 by mail. *Id.* at ¶1 and **Exhibit A** [attached Declaration of Service dated June 3, 2025 (the "Proof of Service")].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before July 8, 2025 (30 days from and after June 3, 2025 was July 3, 2025 and five calendar days thereafter fell on July 8, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶2.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148

Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 6 and Nos. 8 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 7, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

5. 9:00 AM CASE NUMBER: L25-03562
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. HUMBERTO VARGAS
HEARING ON SUMMARY MOTION
FILED BY: VARGAS, HUMBERTO
TENTATIVE RULING:

Defendant Humberto Vargas (“Defendant”) filed a Motion for Summary Judgment on September 11, 2025 (the “MSJ”). The MSJ was set for hearing on December 16, 2025.

Background

Defendant contends that it is entitled to summary judgment as a matter of law because